

presumption of a well-founded fear of future persecution. The BIA made this finding by "tak[ing] administrative notice of the 1999 to 2002 Department of State Country Reports, all of which provide that the 1997[CHT] Peace Accord ended 25 years of insurgency in the CHT."

However, the BIA failed to consider record evidence that, despite the 1997 CHT Peace Accords, circumstances had not changed. For example, the 2004 State Department Report stated that "violence continued in the CHT," and an Amnesty International report in the record indicated that: "More than six years after the signing of the Chittagong Hill Tracts Peace Accord, the tribal inhabitants of the area continue to live in fear of attacks from Bengali settlers often carried out with the apparent connivance of army personnel." Because the BIA failed to consider record evidence that contradicted the finding that conditions had fundamentally changed, we find it necessary to remand this case so that the agency can perform the correct analysis in the first instance. *Niang v. Mukasey*, 511 F.3d 138, 149–50 (2d Cir.2007); *Tambadou v. Gonzales*, 446 F.3d 298, 303–04 (2d Cir.2006); see also *Xiao Ji Chen v. U.S. Dep't of Justice*, 471 F.3d 315, 341 (2d Cir.2006)(holding the IJ should "consider all the evidence in the record that has probative value").

For the foregoing reasons, the petition for review is GRANTED, the BIA's decision VACATED, and the case REMANDED to the BIA for further proceedings consistent with this order. As we have completed our review, any stay of removal that the Court previously granted in this petition is VACATED, and any pending motion for a stay of removal in this petition is DISMISSED as moot. Any pending request for oral argument in this petition is DENIED in accordance with Federal Rule of Appellate Procedure

34(a)(2), and Second Circuit Local Rule 34(d)(1).

Frank RICCI, Michael Blatchley, Greg Boivin, Gary Carbone, Michael Cristoforo, Ryan Divito, Steven Durand, William Gambardella, Brian Jooss, James Kottage, Matthew Marcarelli, Thomas J. Michaels, Sean Patton, Christopher Parker, Edward Riordan, Kevin Roxbee, Timothy Scanlon, Benjamin Vargas, John Vendetto and Mark Vendetto, Plaintiffs–Appellants,

v.

John DESTEFANO, Karen Dubois–Walton, Thomas Ude Jr., Tina Burgett, Boise Kimber, Malcom Weber, Zelma Tirado and City of New Haven, Defendants–Appellees.

No. 06–4996–cv.

United States Court of Appeals,
Second Circuit.

Feb. 15, 2008.

Karen Lee Torre, New Haven, CT, for Plaintiffs–Appellants.

Richard A. Roberts (Nicole C. Chomiak, Stacey L. Pitcher, and Todd J. Richardson on the brief), Cheshire, CT, for Defendants–Appellants.

[REDACTED]

Present: ROSEMARY S. POOLER,
ROBERT D. SACK and SONIA
SOTOMAYOR, Circuit Judges.

SUMMARY ORDER

Plaintiffs appeal from a judgment of the United States District Court for the District of Connecticut (Arterton, J.) granting the defendants' motion for summary judgment on all counts.

We affirm, substantially for the reasons stated in the thorough, thoughtful, and well-reasoned opinion of the court below. In this case, the Civil Service Board found itself in the unfortunate position of having no good alternatives. We are not unsympathetic to the plaintiffs' expression of frustration. Mr. Ricci, for example, who is dyslexic, made intensive efforts that appear to have resulted in his scoring highly on one of the exams, only to have it invalidated. But it simply does not follow that he has a viable Title VII claim. To the contrary, because the Board, in refusing to validate the exams, was simply trying to fulfill its obligations under Title VII when confronted with test results that had a disproportionate racial impact, its actions were protected.

The judgment of the district court is **AFFIRMED**.

[REDACTED]

YI MEI LI, Petitioner,

v.

**Michael B. MUKASEY, Attorney
General of the United States,¹
Respondent.**

No. 06-3422-ag.

United States Court of Appeals,
Second Circuit.

Feb. 15, 2008.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

1. Pursuant to Federal Rule of Appellate Procedure 43(c)(2), Attorney General Michael B. Mukasey is automatically substituted for for-

mer Attorney General Alberto R. Gonzales as the respondent in this case.